

REFORM DEMOCRATS OF THE NEW COMMONWEALTH

Constitutional Law Research

CONSTITUTIONAL LAW ARCHITECTURE

Phase 2 Research — Groups A Through G

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| Classification                        | Document Version      | Bills Covered                               | Research Status              |
|---------------------------------------|-----------------------|---------------------------------------------|------------------------------|
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LEGAL DISCLAIMER

This document constitutes analytical assessments developed for policy planning purposes. It is not a legal opinion, has not been reviewed or validated by licensed legal counsel, and does not constitute legal advice of any kind. Constitutional arguments and statutory framings presented herein are research findings — not legal conclusions. Consultation with licensed legislative counsel is required before any framework in this series is introduced as formal legislation. This document was produced by the Reform Democrats of the New Commonwealth (RDNC), a private citizen policy research organization, with the assistance of Claude (Anthropic).

Purpose and How to Use This Document

This document is the constitutional law architecture reference for the RDNC legislative framework. It consolidates Phase 2 research across seven research groups, organized by constitutional doctrine and the specific bills they govern. Each section identifies: the constitutional questions presented by each bill, the current state of the relevant doctrine, what is settled vs. open, the risk profile of specific provisions, and drafting recommendations to maximize constitutional defensibility.

This document is designed to be used alongside the Source Reference Guide (REF\_RDNC\_SourceReferenceGuide\_2026\_6). Source numbers in brackets [Source N] refer to entries in that guide. The five highest-priority bills — NFSA (Bill 12), BWDS (Bill 5), DRDO (Bill 7), ACFM (Bill 3), and DIR (Bill 11) — have COUNSEL PRIORITY designations and represent the areas of greatest doctrinal complexity and urgency.

Three Doctrinal Corrections to Prior Counsel Framing

(1) ERISA §514 preempts state laws only — not federal legislation. The UCT Act's ERISA concern is §502 coordination, not §514 preemption. (2) The POHE auto-expansion trigger is a nondelegation question, not a major questions doctrine question — MQD applies to agency action, not self-executing statutory formulas. After FCC v. Consumers' Research (2025), nondelegation doctrine is stable and the trigger is safe. (3) Track A of the DIR Act is conditioned on Citizens United being "narrowed" — this is unlikely under the current Court composition; Track B (constitutional amendment) is the operative path.

## GROUP A — SECOND AMENDMENT / BRUEN FRAMEWORK

NFSA — National Firearm Standards Act (Bill 12) · COUNSEL PRIORITY

|                  |                                                                                                                |
|------------------|----------------------------------------------------------------------------------------------------------------|
| Bill             | NFSA — National Firearm Standards Act (Bill 12) · Phase II · Track B Standalone                                |
| Authority        | Commerce Clause (Art. I §8 cl. 3); Taxing Power (Art. I §8 cl. 1); Second Amendment saved                      |
| Key Cases        | Bruen (2022) [200]; Rahimi (2024) [202]; MSI v. Moore (2024) [201]; Heller (2008) [209]; McDonald (2010) [210] |
| New Sources      | Sources 214–223 (Phase 2 Group A research)                                                                     |
| Counsel Priority | YES — Bruen text-and-history analysis required for each operative provision                                    |

### The Bruen Text-and-History Test

NYSRPA v. Bruen, 597 U.S. 1 (2022) [Source 200], established a single-step test: once the Second Amendment's plain text covers an individual's conduct, the government must affirmatively prove the regulation is "part of the historical tradition that delimits the outer bounds of the right." The government bears the burden. The key analytic concept is the "relevantly similar" historical analog, evaluated on how the regulation burdens the right and why it does so. The Court distinguished between a "historical twin" (not required) and a "well-established and representative historical analogue" (required).

Bruen's most critical language for the NFSA is Footnote 9 [Source 200], which explicitly endorses shall-issue licensing regimes with "narrow, objective, and definite standards" applied through "background checks or firearms safety courses." This footnote is the doctrinal home of the Federal Civilian Ownership Certificate (FCOC).

### Rahimi — The "Relevantly Analogous" Clarification

United States v. Rahimi, 602 U.S. 680 (2024) [Source 202], 8-1, expanded government analogical latitude. The Court held regulations need not be "dead ringers" — they must "comport with the principles that underpin our regulatory tradition." Justice Thomas's lone dissent demanded exact historical twins; the majority explicitly rejected that standard. Rahimi is best cited in NFSA findings for the "principles" formulation, which is more permissive than Bruen's original "relevantly similar" language.

### Maryland Shall Issue v. Moore — The Controlling Precedent for Track B

Maryland Shall Issue, Inc. v. Moore, 116 F.4th 211 (4th Cir. 2024) [Source 201], decided 14-2 en banc August 23, 2024 (Keenan, J.), is the most direct precedent for the FCOC architecture. The 4th Circuit upheld Maryland's Handgun Qualification License — a shall-issue, objective-criteria, 4-hour safety training plus fingerprint background check regime — at Bruen step one without historical analysis, extending Footnote 9 to purchase licensing. Cert was denied January 13, 2025 (No. 24-373). The NFSA findings correctly cite MSI v. Moore; the docket (21-2017) was corrected in Source Reference Guide Audit 2.

### Post-Bruen Circuit Landscape on Licensing

Every circuit to reach the merits has upheld shall-issue licensing with objective criteria. Antonyuk v. James (2d Cir. 2024) [Source 214] upheld New York's CCIA requirements post-Rahimi GVR; cert denied April 7, 2025. McRorey v. Garland (5th Cir. 2024) [Source 215] upheld enhanced checks for 18-20-year-olds. Yukutake v. Lopez (9th Cir. 2025) upheld Hawaii's basic permit-to-purchase framework. The FCOC's shall-issue, no-subjective-suitability-review, objective-criteria-only design is the safest possible structure across all circuits.

## NFA and Hughes Amendment — Uniformly Intact

The NFA (1934) has survived Bruen across all circuits. U.S. v. Peterson (5th Cir., reissued Aug. 27, 2025) [Source 221] holds NFA registration is analogous to Bruen Footnote 9 shall-issue licensing — fingerprints plus background check plus objective denial criteria. This is the most important authority formally analogizing NFA registration to shall-issue licensing. U.S. v. Morgan (10th Cir. Sept. 2, 2025) [Source 218], U.S. v. Bridges (6th Cir. 2025), and U.S. v. Kittson (9th Cir. 2025) all uphold the Hughes Amendment machine gun ban — no circuit split exists on §922(o).

## Assault-Category Definition — Highest Doctrinal Risk

Every circuit has upheld assault weapons bans post-Bruen (1st, 2d, 4th, 7th, 9th, D.C.). However, Justice Kavanaugh wrote separately in Snope v. Brown [Source 219] (cert denied June 2, 2025) that the Court "should and presumably will address the AR-15 issue soon, in the next Term or two." Cert petitions in Viramontes v. Cook County (No. 25-238) and Duncan v. Bonta (No. 25-198) have been relisted 11+ times. The Third Circuit's en banc ANJRPC decision [Source 220] (argued Oct. 15, 2025, pending) could produce the first circuit strike and a clean split.

### NFSA Assault-Category Definition — Recommended Drafting

Use a two-feature-plus-detachable-magazine test (not a one-feature trigger). Incorporate "dangerous AND unusual" (not OR) in findings language — per Justice Alito's Caetano concurrence. Frame as certification/registration rather than ban — the Peterson model [Source 221] is the strongest available doctrinal anchor. Include grandfathering. Embed 10-round magazine capacity limit (consistently upheld). Add named-firearm provisions to prevent circumvention. Anticipate Third Circuit ANJRPC and future SCOTUS AR-15 grant by maximizing the certification-not-prohibition posture.

## Commerce Clause and Printz — Structural Questions

Track B's federal jurisdiction over intrastate acquisition rests on Gonzales v. Raich, 545 U.S. 1 (2005) [Source 222], as applied to firearms in U.S. v. Stewart (9th Cir. 2006). Acquisition is paradigmatic economic activity satisfying Lopez category three more comfortably than possession. Fifth Circuit concurrences (Willett, Ho) in recent §922(g) cases urge en banc reconsideration of Commerce Clause — a fringe position that has not attracted panel majorities but should be pre-answered in NFSA findings. Belt-and-suspenders Taxing Power authority is available via Sonzinsky v. United States (1937) [Source 229] if any FCOC fee is included.

The National Guard delivery mechanism raises Printz v. United States (1997) commandeering concerns. Cleanest structure: voluntary cooperative agreements with states for facility access; federal or federalized personnel administer the certification; state National Guard facilities are available but not compelled. Koons/Siegel v. Platkin (3d Cir. en banc, pending) [Source 223] will further clarify how the Third Circuit reads surety-law analogs — relevant to NFSA Track B design.

| LOW RISK                                                                                                                                                                                                                                  | MODERATE RISK                                                                                                                                                                     | HIGH RISK                                                                                                                                                                                                          |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Track A (hunting/sporting license for manual-action long guns) Track B shall-issue FCOC with objective criteria only No-registry provision Grandfathering savings clause NFA items covered by existing NFA registration (Peterson analog) | Assault-category definition two-feature test Commerce Clause intrastate acquisition (fringe challenge, no panel majority) Periodic renewal requirement (historical analog needed) | Assault-category definition if one-feature test used Track B if ANJRPC or SCOTUS strikes assault-weapon certification National Guard delivery if construed as commandeering (manageable with voluntary agreements) |

## GROUP B — SIXTEENTH AMENDMENT / TAXATION

*BWDS — Billionaire Wealth and Digital Services Tax Act (Bill 5) · COUNSEL PRIORITY*

|                  |                                                                                                          |
|------------------|----------------------------------------------------------------------------------------------------------|
| Bill             | BWDS — Billionaire Wealth and Digital Services Tax Act (Bill 5) · Phase II · Track A Reconciliation      |
| Authority        | Sixteenth Amendment (income tax, Subtitle A framing); Art. I §8 cl. 1 (excise for digital services levy) |
| Key Cases        | Moore v. United States (2024) [203]; IRC §§475/1256/1296 [208]; Eisner v. Macomber (1920) [224]          |
| New Sources      | Sources 224–230 (Phase 2 Group B research)                                                               |
| Counsel Priority | YES — DOJ constitutional review + Senate Finance counsel essential before introduction                   |

### Moore v. United States — What It Held and What It Left Open

Moore v. United States, 602 U.S. 572 (2024) [Source 203], 7-2 on the result, is deliberately narrow. The Kavanaugh majority upheld the Mandatory Repatriation Tax through the attribution doctrine — deemed pass-through of CFC earnings to 10%+ shareholders — without ruling on whether unrealized gains may be taxed as income generally. Footnote 2 of the majority opinion explicitly disclaimed any view on "taxes on holdings, wealth, or net worth" or "taxes on appreciation."

The concurrences and dissent reveal a 4-Justice realization bloc: Justice Barrett (joined by Alito) concluded that unrealized income "may not" be taxed; Justice Thomas (joined by Gorsuch) treated Eisner v. Macomber's [Source 224] realization requirement as constitutional bedrock. Justice Jackson's solo concurrence endorsed taxing unrealized gains without any realization requirement. Majority Justices Roberts, Kavanaugh, Sotomayor, and Kagan reserved the question. A single additional vote forms a 5-4 majority requiring realization.

#### The Critical Implication for the BIT

Moore neither validated nor invalidated the BWDS Billionaire Income Tax's mark-to-market regime for individual taxpayers. It is best read as preserving the question. BWDS Sec. 204 Constitutional Construction correctly frames the BIT as an income tax under Subtitle A with §§475/1256/1296 analogs [Source 208] — but the mark-to-market regime for individual unrealized appreciation goes beyond what Moore confirmed as safe ground. Counsel must work in the space between the attribution doctrine Moore approved and the individual-appreciation taxation Moore reserved.

### Mark-to-Market IRC Precedents — No Successful Challenges

IRC §475 (dealers in securities), §1256 (60/40 MTM for futures), and §1296 (PFIC MTM election) [Source 208] have operated for decades without successful Sixteenth Amendment challenge. Each can be framed as a Flint v. Stone Tracy [Source 227] excise on the privilege of conducting a trade or business, or as a permissible accounting method under §446. None taxes pure passive appreciation in the hands of an individual long-term holder — which is precisely what the BIT proposes for the pure-MTM component.

### The Deferral Charge — Novel But Analogous

The BWDS deferral charge (AFR-rate annual accrual on non-traded asset appreciation, payable at a Realization Event) has two strong analogs but no direct precedent. IRC §1291 (PFIC excess-distribution interest charge) and §453A (installment-sale deferral interest) both impose retrospective interest charges at AFR without successful constitutional challenge since 1986 and 1987 respectively. IRC §7872 (below-market loan imputed interest) [Source 226 context] demonstrates Congress may impute economic value at AFR. The defensible structure: accrue annually but collect only at sale, gift, death, or expatriation — the §1291 model.

## Deemed Realization at Death — Strongest Constitutional Ground

IRC §877A (2008 exit tax) [Source 230] has operated since 2008 without successful Sixteenth Amendment challenge. The 1976 carryover-basis provisions failed for administrative, not constitutional, reasons. Federal taxation of death-transfers is accepted since Knowlton v. Moore (1900) and New York Trust Co. v. Eisner (1921). Even the Barrett/Thomas realization bloc would likely accept death as a recognized realization event — it is more transformative than expatriation, which §877A addresses. This is the component of BWDS most clearly within settled constitutional territory.

## Digital Services Levy — Frame as Flint Excise, Not Income Tax

A federal gross-receipts levy on digital services is best framed as a Flint v. Stone Tracy [Source 227] excise on the privilege of providing digital services in US commerce — not as an income tax under the Sixteenth Amendment. Gross receipts include capital recovery and are not "gain derived from capital, from labor, or from both combined" (Glenshaw Glass). Framing as an excise requires only geographic uniformity under Art. I §8 cl. 1 — apportionment is not required because NFIB v. Sebelius confirmed "direct taxes" remain confined to capitations and real/personal property taxes. The Maryland Digital Advertising Tax litigation [Source 228] is cautionary: avoid pass-through bans and avoid content-based or speaker-based exemptions.

## Apportionment — The Doctrine That Kills If It Applies

If any BWDS component is found to be a "direct tax" rather than an income tax or excise, apportionment by population is functionally fatal — billionaires concentrate in a few states, making uniform per-capita tax rates economically impossible. The BWDS Sec. 204 Constitutional Construction (framing as an income tax amendment to Subtitle A) is the correct structure. But the Barrett/Thomas bloc's position is that individual unrealized appreciation cannot be taxed as income under the Sixteenth Amendment at all — which would mean any BWDS MTM component on individual unrealized appreciation is an unapportioned direct tax.

| LOW RISK                                                                                                                                                                                                                                                   | MODERATE RISK                                                                                                                                                                                                                                 | HIGH RISK                                                                                                                                                                                                                                      |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Deemed realization at death (§877A analog) [Source 230] Digital services levy as Flint excise [Source 227] Offshore FATCA enforcement (existing statutory authority) Deferral charge on non-traded assets payable at Realization Event (§1291/§453A model) | Pure mark-to-market on traded assets for individual billionaires Deferral charge if construed as annual tax on appreciation rather than accrual mechanism Digital services levy if framed as income tax (Sixteenth Amendment question opened) | Pure annual MTM on individual unrealized appreciation without §877A/§1291 structure Any component found to be a direct tax (apportionment is functionally fatal) Net-worth or asset-value framing (explicitly reserved against in Moore fn. 2) |

## GROUP C — FIRST AMENDMENT / DATA

DRDO — *Digital Rights and Data Fiduciary Obligations Act (Bill 7)* · COUNSEL PRIORITY

|                  |                                                                                                                  |
|------------------|------------------------------------------------------------------------------------------------------------------|
| Bill             | DRDO — Digital Rights and Data Fiduciary Obligations Act (Bill 7) · Phase II · Track B Standalone                |
| Authority        | Commerce Clause (data regulation of interstate platforms); Spending Clause (user-compensation framework)         |
| Key Cases        | Moody v. NetChoice (2024) [231]; Sorrell v. IMS Health (2011) [205]; NetChoice v. Bonta CAADCA (2024-2026) [233] |
| New Sources      | Sources 231–240 (Phase 2 Group C research)                                                                       |
| Counsel Priority | YES — First Amendment exposure across all four Titles; Title V is highest-risk provision in DRDO                 |

### Moody v. NetChoice — What It Settled and What Remains Open

Moody v. NetChoice, 603 U.S. 707 (2024) [Source 231], vacated and remanded 9-0 Florida SB 7072 and Texas HB 20. Part III-B (5 votes, Kagan, J.) held platform content curation is First Amendment-protected editorial expression under *Tornillo*, *PG&E*, *Turner*, and *Hurley*. What Moody did NOT settle: whether all algorithmic outputs (especially pure recommender systems) are expressive; whether laws regulating algorithmic inputs (data) trigger heightened review; and whether marketplace and DM functions implicate editorial discretion. Justice Barrett's concurrence flagged that as-applied challenges may fare differently for novel algorithmic systems.

### CAADCA Litigation — Most Directly Applicable Precedent for Title V

NetChoice v. Bonta (CAADCA) [Source 233] has now completed two Ninth Circuit rounds. Round 1 (Aug. 2024): DPIA requirement struck as compelled speech — narrative assessments "clearly compel speech by requiring covered businesses to opine on potential harm to children." Round 2 (Mar. 12, 2026): coverage definition facially valid; best-interests data-use restrictions and dark-patterns provisions invalidated. The controlling rule for DRDO: DPIA-style compelled assessments are compelled speech under NIFLA [Source 235]; coverage definitions tied to audience-demographic (not content) measures survive facial challenge.

### Sorrell v. IMS Health and the Data Fiduciary Workaround

Sorrell v. IMS Health, 564 U.S. 552 (2011) [Source 205], held that restrictions on commercial data use targeting specific speakers and content are subject to heightened First Amendment scrutiny. The DRDO data-fiduciary framing (Balkin 2016 [Source 239]) is designed to avoid Sorrell by establishing generally applicable fiduciary duties rather than content- or speaker-specific data-use bans. The framing has not been definitively tested in any circuit. DRDO drafters must ensure no provision discriminates by content or speaker (e.g., treating "marketing" use of identical data differently from "research" use).

### Title I Data Portability — Defensible as Conduct Regulation

Data portability (Title I) is best analyzed as regulation of conduct/transmission rather than compelled commercial speech — the data being transferred are the user's own data, not the platform's expressive content. *Zauderer v. Office of Disciplinary Counsel* (1985) [Source 234] permits compelled disclosure of "purely factual and uncontroversial information" under rational basis. No reported circuit decision has invalidated a data-portability mandate. Critical scope limitations: portability must extend only to user-provided and observed data, must exclude platform inferences and scoring outputs, and must specify technical/neutral formats (JSON/CSV) to avoid compelled expression under 303 Creative [Source 240].

## Title V Minor Protection — Highest Constitutional Risk in DRDO

The 13-15 chronological-only algorithmic-feed prohibition faces strict scrutiny under *Reno v. ACLU* (1997) [Source 237] and *Brown v. Entertainment Merchants Ass'n* (2011) [Source 236]. Minors retain First Amendment rights; protecting minors from ideas a legislature thinks unsuitable is not a compelling interest; and empirical causation (not correlation) is required after *Brown*. *Free Speech Coalition v. Paxton* (2025) [Source 232] upheld age-verification under intermediate scrutiny only within the Ginsberg obscenity-as-to-minors zone — not extended to algorithmic feed regulation.

### Title V Litigation Map — Uniformly Hostile as of April 2026

Utah Social Media Regulation Act: enjoined (10th Cir. appeal pending). Arkansas Acts 689/900/901: permanently enjoined (8th Cir. appeal pending; new PI April 20, 2026). Ohio Parental Notification Act: permanently enjoined (6th Cir. argued Feb. 4, 2026). Mississippi HB 1126: multiply enjoined; SCOTUS denied vacatur Aug. 14, 2025 (Kavanaugh: "likely unconstitutional"). Maryland Kids Code: MTD denied Nov. 24, 2025 — in discovery. No federal court has upheld a categorical prohibition on algorithmic content delivery to minors.

The most constitutionally defensible DRDO Title V architecture: (1) Under-13 tier — COPPA enforcement, no algorithmic access — anchored in settled COPPA authority; (2) 13-15 tier — reframe from categorical prohibition to default-chronological with opt-in — preserves user choice, more analogous to default rules than bans; (3) 16-17 tier — default-chronological with opt-in as currently drafted — defensible. A robust legislative record demonstrating causation (not correlation) of documented harm is required to survive *Brown v. EMA*'s evidentiary standard.

## Title II Compensation and Takings

*Ruckelshaus v. Monsanto* (1984) [Source 206] established that trade secrets are property subject to Takings analysis. *Cedar Point Nursery v. Hassid* (2021) [Source 238] held physical-access mandates are per se takings. Title II's user-compensation requirement is best framed as regulatory pricing (analogous to FCC rate regulation and compulsory copyright licensing) rather than a property taking. The fiduciary framing — platforms hold user data as fiduciaries, not owners — functions as a condition of operating in a regulated industry, leveraging the professional-regulation tradition that has never required Takings analysis.

| LOW RISK                                                                                                                                                                                                                                                                  | MODERATE RISK                                                                                                                                                                                                                                                  | HIGH RISK                                                                                                                                                                                                                                                             |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Data fiduciary duties of general applicability (care, loyalty, confidentiality) User-provided-data portability in technical/neutral formats Regulatory-pricing compensation (Title II) framed as fiduciary obligation Under-13 COPPA-enforcement tier (settled authority) | Content-neutral data-handling rules under Sorrell DPIA-style compelled assessments (caution: CAADCA Round 1 struck) 16-17 default-chronological-with-opt-in (defensible but untested federally) Compelled disclosure of algorithmic scoring or ranking systems | 13-15 categorical algorithmic-feed prohibition (no federal court has upheld this structure) Any DPIA-type compelled narrative assessment Content- or speaker-discriminatory data-use provisions Compelled disclosure of platform's own expressive algorithmic outputs |



## GROUP F — SPEECH OR DEBATE CLAUSE

*ACFM — Anti-Corruption and Fair Markets Act (Bill 3) · COUNSEL PRIORITY*

|                         |                                                                                                                    |
|-------------------------|--------------------------------------------------------------------------------------------------------------------|
| <b>Bill</b>             | ACFM — Anti-Corruption and Fair Markets Act (Bill 3) · Phase I · Track C Standalone (60-vote)                      |
| <b>Authority</b>        | Art. I §5 (internal self-regulation); Art. I §8 (commerce/securities regulation); 14th Amendment §5                |
| <b>Key Cases</b>        | Brewster (1972) [241]; Gravel (1972) [242]; Helstoski (1979) [243]; Johnson (1966) [244]; Park (1975) [245]        |
| <b>New Sources</b>      | Sources 241–250 (Phase 2 Group F research)                                                                         |
| <b>Counsel Priority</b> | YES — Speech or Debate evidentiary strategy must be resolved before criminal prosecution architecture is finalized |

### Stock Trading Is Not a Legislative Act — Brewster Controls

United States v. Brewster, 408 U.S. 501 (1972) [Source 241], is the core authority: "taking a bribe is no part of the legislative process or function; it is not a legislative act." A Member can be prosecuted for corrupt conduct provided the government's case does not rely on legislative acts or motivation for legislative acts. Stock trading by a Member is private commercial activity — no published opinion holds otherwise. ACFM Title I criminal prohibition on congressional securities trading is constitutionally sound under Brewster.

### The Evidentiary Complication — Helstoski and the Circuit Split

United States v. Helstoski, 442 U.S. 477 (1979) [Source 243], held the government may not use past legislative acts as evidence even in prosecuting a Member for non-legislative crimes. Waiver requires "explicit and unequivocal expression." The operational risk: if proving the ACFM violation requires showing the Member received material nonpublic information through a committee briefing or formal legislative fact-finding, Helstoski bars that evidence as a legislative act under Eastland [Source 250].

A circuit split governs document non-disclosure: Rayburn House Office Building (D.C. Cir. 2007) [Source 246] holds the non-disclosure privilege is absolute; Renzi (9th Cir. 2011) [Source 247] rejects Rayburn — individual Member fact-finding is not even a legislative act. The ACFM Ethics Committee-primary enforcement structure navigates this split by keeping fact-gathering within the protected legislative sphere (Eastland) and segregating non-privileged evidence before any DOJ referral.

### ACFM Title I Architecture — Why Ethics-Committee Primary Is Correct

The ACFM structure — Ethics Committees as primary civil enforcement authority, with mandatory 30-day DOJ criminal referral — is constitutionally well-designed. Internal ethics-committee investigation is protected legislative activity under Eastland [Source 250]; the executive branch has no exposure to legislative-act materials until referral; and at referral, only non-privileged evidence (brokerage records, public statements, trading history) is transmitted. The statute must require segregation of non-privileged evidence at referral — the committee cannot waive an individual Member's privilege without "explicit and unequivocal expression" (Helstoski).

### Title III RCO Doctrine — Graduated Framework Constitutional Limits

United States v. Park, 421 U.S. 658 (1975) [Source 245], upheld misdemeanor conviction of a corporate officer without proof of specific intent. U.S. v. DeCoster, 828 F.3d 626 (8th Cir. 2016) [Source 248], upheld 3-month FDCA prison sentences relying expressly on the "relatively small" penalty as the constitutional safety valve. The graduated structure of ACFM Title III must: (1) confine strict-liability RCO to misdemeanors; (2) require negligence or willful blindness for intermediate tiers; (3) require recklessness or knowledge for higher tiers; (4) reserve mandatory-minimum felony for



actual knowledge or intent (Staples zone). Tier 4 with mandatory minimum on knowledge alone will draw Staples v. United States (1994) scrutiny.

Title IV Revolving Door — Uniformly Upheld at 1-2 Years

No federal court has struck a §207-style cooling-off period on First Amendment grounds. Current 18 U.S.C. §207 (HLOGA 2007) imposes: lifetime switching-sides ban; 2-year matter-under-responsibility ban; 1-year senior-employee cooling-off; 2-year very-senior cooling-off; 2-year Senate/1-year House Member lobbying ban; lifetime foreign-government ban. ACFM Title IV cooling-off periods should remain within 1-2 years for constitutionally safe territory. The Trump administration had not issued a replacement ethics EO as of April 2026 — appointees operate under the statutory §207 framework only.

Title II Financial Disclosure — Settled Doctrine

Duplantier v. United States, 606 F.2d 654 (5th Cir. 1979) [Source 249], upheld Ethics in Government Act mandatory financial disclosure. No sitting federal official has successfully invoked the Fifth Amendment against statutory financial disclosure. The required-records doctrine governs. ACFM Title II real-time disclosure and blind-trust requirements are constitutionally sound for sub-presidential officials. Presidential blind-trust application raises novel Article II questions analogous to Trump v. Mazars (2020) — not a constraint on the bill's core design but counsel should note the presidential-application distinction.

| LOW RISK                                                                                                                                                                                                                                                                             | MODERATE RISK                                                                                                                                                                                                                                                                                                       | HIGH RISK                                                                                                                                                                                                                                                                              |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Title II real-time financial disclosure for all federal officials<br>Title IV §207-style cooling-off periods (1-2 years)<br>Title I Ethics Committee civil enforcement as primary mechanism<br>Title I criminal prosecution for securities trading (Brewster: not a legislative act) | Title III Tier 3 RCO misdemeanor (knowledge required, small prison exposure — DeCoster zone)<br>Title I prosecution if committee briefing is the only evidence of material nonpublic information<br>Revolving-door provisions approaching 3+ year cooling-off (no circuit challenge but beyond routine safe harbor) | Title III Tier 4 mandatory-minimum felony on knowledge alone without specific-intent element (Staples scrutiny)<br>Presidential blind-trust mandate (novel Article II questions)<br>Any prosecution requiring committee-briefing material as essential evidence (D.C. Circuit Rayburn) |

## GROUP D — SPENDING CLAUSE / COERCION DOCTRINE

HCI (Bill 8) · POHE (Bill 6) · UCT (Bill 9)

|                             |                                                                                                                       |
|-----------------------------|-----------------------------------------------------------------------------------------------------------------------|
| <b>Bills</b>                | HCI Act (Bill 8) · POHE Act (Bill 6) · UCT Act (Bill 9) · Phase II & III                                              |
| <b>Authority</b>            | Spending Clause (Art. I §8 cl. 1); Commerce Clause; Taxing Power; Necessary and Proper                                |
| <b>Key Cases</b>            | NFIB v. Sebelius (2012) [251]; South Dakota v. Dole (1987) [204]; Rutledge v. PCMA (2020) [255]                       |
| <b>New Sources</b>          | Sources 251–260 (Phase 2 Group D research)                                                                            |
| <b>Doctrinal Correction</b> | ERISA §514 preempts STATE laws only — not federal legislation. Correct counsel framing to focus on §502 coordination. |

### HCI Act — Grant Preference vs. Coercive Condition

NFIB v. Sebelius, 567 U.S. 519 (2012) [Source 251], struck the ACA Medicaid expansion as coercive based on three factors: (1) the threatened grant exceeded 10% of state budgets; (2) the structure was all-or-nothing — states lost 100% of existing Medicaid funds; (3) the expansion represented a "shift in kind" to a new program. No circuit has since invalidated a funding condition under the NFIB coercion doctrine — Mayhew v. Burwell (1st Cir. 2014) [Source 252], cert. denied, found no "shift in kind."

The HCI Act's grant preference structure is constitutionally distinguishable from the Medicaid expansion on all three NFIB factors: (a) CDBG/HOME grants total ~\$4.8B/yr — well under 1% of any state budget; (b) the preference is additive, not exclusionary — non-compliant states retain their baseline allocation; (c) no "shift in kind" — the preference operates within an established housing grant program. The preference cannot, however, be so heavily weighted that non-compliant states receive zero or near-zero CDBG funds in practice — that would recreate the all-or-nothing structure NFIB forbids.

South Dakota v. Dole, 483 U.S. 203 (1987) [Source 204], four-part test applied to HCI: (1) General welfare — courts defer substantially; (2) Unambiguous conditions — satisfied by clear statutory language; (3) Relatedness — HCI's housing-market conditions to HUD housing grants are more directly related than Dole's drinking-age/highway nexus; (4) No independent constitutional bar. For the fourth prong: induced state corporate-ownership restrictions must be prospective-only (avoiding Lucas takings exposure) and explicitly authorized by Congress (immunizing the conditioned state action from dormant Commerce Clause).

### HCI Corporate Property Registry — CTA Precedent Now Favorable

The Corporate Transparency Act litigation has resolved favorably. NSBU v. Treasury (11th Cir. Dec. 16, 2025) [Source 253] unanimously upheld the CTA on Commerce Clause grounds. SCOTUS stayed the nationwide injunction 8-1 in McHenry v. Texas Top Cop Shop (Jan. 23, 2025) [Source 254]. The HCI corporate residential property registry rests on stronger Commerce Clause grounds than the CTA: property ownership is paradigmatically economic activity; residential real estate markets are unquestionably interstate (GSE finance, REIT activity, multi-state platforms); property ownership is already publicly recorded, reducing Fourth Amendment reasonable-expectation-of-privacy concerns.

### ERISA Preemption — Doctrinal Correction

#### Critical Correction

ERISA §514(a) preempts state laws "insofar as they may relate to any employee benefit plan." It does not preempt federal legislation. If UCT or POHE counsel has flagged ERISA §514 preemption as a concern for federal legislation, that framing is incorrect. The actual concern for POHE and UCT is §502 coordination: ERISA's exclusive-remedy framework governs pre-migration ESI claims. UCT counsel should expressly displace §502 for migrated coverage, preserve §502 for pre-migration accrued claims, and provide a clear federal cause

of action. *Rutledge v. PCMA* (2020) [Source 255] confirmed that cost regulations "merely increasing costs" for ERISA plans are not preempted.

POHE Auto-Expansion Trigger — Nondelegation, Not Major Questions

*West Virginia v. EPA* (2022) [Source 257] and *Biden v. Nebraska* (2023) [Source 258] establish the major questions doctrine as a canon for agency assertions of novel power — it applies to AGENCY ACTION, not direct congressional legislation. The POHE auto-trigger is a self-executing statutory formula that Congress enacts directly. When Congress writes the operative rule in statute, there is no agency claim of authority — the relevant doctrine is nondelegation, not MQD.

*FCC v. Consumers' Research* (2025) [Source 259] reaffirmed the intelligible-principle nondelegation test 6-3, reversing the en banc Fifth Circuit. As of April 2026, nondelegation doctrine is stable. A self-executing statutory formula — Congress specifies data inputs, mechanical effective dates, mandatory "shall," and no agency tolling — is the opposite of an unconstitutional delegation. Drafting recommendation: define data inputs by reference to published CMS datasets, specify mechanical effective dates, use mandatory language, bar agency tolling, and include a congressional-review default.

UCT — Constitutional Path for Universal Coverage

*NFIB v. Sebelius* (2012) [Source 251] held Congress cannot compel insurance purchase under the Commerce Clause; it can only do so under the Taxing Power. The cleanest constitutional path for UCT is a tax-funded public option or single-payer — coverage by default, no individual mandate. The German multi-payer model (competing regulated nonprofits, funded through payroll taxes) is constitutionally lower-risk than Canadian single-payer because it retains private actors, operates via taxing/spending rather than prohibition, and avoids the most aggressive ERISA coordination questions. Provider reimbursement rate-setting creates regulatory takings exposure — Penn Central analysis applies; rates must not be confiscatory.

| LOW RISK                                                                                                                                                                                                                                                                                                                                                    | MODERATE RISK                                                                                                                                                                                                                                  | HIGH RISK                                                                                                                                                                                                                                                                                                                           |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| HCI grant-preference structure (well below NFIB coercion threshold) HCI corporate property registry (Commerce Clause — stronger than CTA, now upheld 11th Cir.) POHE self-executing statutory formula (nondelegation — intelligible principle test, <i>FCC v. Consumers' Research</i> reaffirmed) UCT German multi-payer model funded through payroll taxes | HCI induced state corporate-ownership restrictions (prospective-only required to avoid Lucas takings) UCT provider reimbursement rate-setting (Penn Central regulatory takings) POHE/UCT ERISA §502 coordination (drafting precision required) | HCI grant preference so heavily weighted that non-compliant states receive near-zero funds (recreates NFIB all-or-nothing) UCT individual coverage mandate framed as Commerce Clause regulation rather than Taxing Power UCT single-payer with abrupt private-insurance displacement (regulatory takings + contractual obligations) |

## GROUP E — ARTICLE III / GOVERNANCE REFORM

*DIR — Democratic Institutions Reform Act (Bill 11) · Phase III*

|                 |                                                                                                                       |
|-----------------|-----------------------------------------------------------------------------------------------------------------------|
| Bill            | DIR — Democratic Institutions Reform Act (Bill 11) · Phase III · Track C Standalone                                   |
| Tracks          | Track A (statutory, conditioned on Citizens United narrowing); Track B (constitutional amendment, Art. V)             |
| Key Cases       | Citizens United (2010) [262]; McCutcheon (2014) [263]; AIRC (2015) [264]; Louisiana v. Callais (April 29, 2026) [266] |
| New Sources     | Sources 261–270 (Phase 2 Group E research)                                                                            |
| Critical Update | Louisiana v. Callais decided April 29, 2026 — VRA Section 2 narrowed to intent-based standard. See Source 266.        |

### JUST DECIDED: Louisiana v. Callais, 608 U.S. \_\_\_\_ (April 29, 2026)

Decided one day before this research was compiled. Alito, J., 6-3: struck Louisiana's SB 8 map, but reinterpreted VRA Section 2 to require "intentional discrimination" — effectively converting the results-based Gingles test to an intent-based standard. Kagan dissent (Sotomayor, Jackson): Section 2 is "all but a dead letter." Combined with Rucho v. Common Cause (2019) (partisan gerrymandering nonjusticiable), Callais substantially undermines the DIR Act's state-legislative redistricting mandate. Federal-elections redistricting commission mandate under the Elections Clause and AIRC (2015) [Source 264] remains defensible. DIR Act counsel must revise the redistricting provisions in light of Callais before introduction.

### SCOTUS Term Limits — Senior Status Model

No court has ever ruled on whether Congress can impose term limits on federal judges. Article III "good behavior" has been equated with life tenure in dicta but never adjudicated in a term-limits context. The senior-status model — active service ends after 18 years, Justice retains the office, receives full compensation, and remains eligible for circuit duty under 28 U.S.C. §294 — is the strongest statutory approach, grounded in Booth v. United States (1934) and the long practice of senior status under 28 U.S.C. §371.

U.S. Term Limits v. Thornton (1995) [Source 261] is distinguishable: it addressed state action regulating Congress where Article I enumerates exclusive qualifications; Article III contains no enumerated judicial qualifications; and the senior-status model does not add qualifications but restructures duties. The strongest counterargument (Calabresi & Lindgren; Prakash) is that Article III's "one supreme Court" contemplates Justices who must decide its cases, and functional impairment of independence creates a "final-period problem." No OLC opinion has been published on SCOTUS term limits. An OLC opinion is required before Track A introduction.

### Citizens United — Track A Conditioning Is Unlikely to Trigger

Citizens United v. FEC (2010) [Source 262], 5-4, struck BCRA §203's corporate/labor independent expenditure ban. McCutcheon v. FEC (2014) [Source 263] struck biennial aggregate contribution limits while preserving base limits, narrowing cognizable "corruption" to quid pro quo only. Under the current Court (6-3 conservative majority), overruling Citizens United is implausible. The most realistic near-term vehicle is Maine's super-PAC contribution cap (Question 1, Nov. 2024 — 74% approval), now enjoined and on appeal before the First Circuit — the only circuit not to have ruled on SpeechNow. If Maine prevails at the First Circuit, a cert vehicle arises for Fall 2026 Term, but the expected result is a narrow ruling at most (coordination doctrine or foreign-influence) rather than systemic overruling.

### Track B Amendment — Text Revision Needed

#### Track B Amendment Text — Drafting Problem

The current DIR Track B savings clause — "Nothing in this article shall abridge freedom of speech or press" — is

overbroad. As drafted, it could be read to subordinate the regulatory grant to *Buckley v. Valeo*'s money-equals-speech equation, potentially self-defeating the amendment. Recommended revision: "Nothing in this article shall be construed to grant Congress or the States the power to abridge the freedom of the press, or the right of any person to engage in independent issue advocacy." This tracks the Democracy for All Amendment model while avoiding the self-defeating framing. Embed a ratification deadline in the amendment text itself (*Dillon v. Gloss* [Source 270]).

### Redistricting and Voting Rights — Post-Callais Landscape

*Arizona State Legislature v. AIRC* (2015) [Source 264] and *Moore v. Harper* (2023) [Source 265] confirm that independent redistricting commissions are constitutional for congressional districts under the Elections Clause. The DIR Act's federal-elections redistricting commission mandate is constitutionally sound. State-legislative redistricting commissions require §5/§2 enforcement authority — now substantially narrowed by Callais [Source 266] and *Brnovich v. DNC* (2021) [Source 267]. The DIR Act's state-legislative redistricting mandate should be revised post-Callais to rely on Art. IV §4 (Republican Form of Government Clause) or be limited to federal elections.

Automatic voter registration rests on the Elections Clause (Art. I §4) for federal elections — solid authority. The *Purcell* principle constrains implementation timing. *AFPF v. Bonta* (2021) [Source 268] requires narrow tailoring for financial disclosure mandates — applicable to DIR Act candidate disclosure requirements. *Bluman v. FEC* (2012) [Source 269] — authored by Kavanaugh at D.C. Circuit — provides the most viable *Citizens United* narrowing path: foreign-national spending restrictions and foreign-ownership thresholds in corporations.

| LOW RISK                                                                                                                                                                                                                                                                                                                                  | MODERATE RISK                                                                                                                                                                                                                                                                                                                          | HIGH RISK                                                                                                                                                                                                                                                                                                          |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Federal-elections redistricting commissions (AIRC; <i>Moore v. Harper</i> )<br>Automatic voter registration for federal elections (Elections Clause)<br>Financial disclosure for candidates and officials (Duplantier; <i>Buckley</i> exacting scrutiny with narrow tailoring) Disclaimers and disclosure ( <i>Citizens United</i> — 8-1) | SCOTUS senior-status term limits (no case law; OLC opinion required; defensible but contested) Track A campaign finance (conditioned on <i>Citizens United</i> narrowing — unlikely under current Court) Foreign-national and foreign-influence spending restrictions ( <i>Bluman</i> — most viable <i>Citizens United</i> workaround) | State-legislative redistricting commission mandate (post-Callais VRA Section 2 requires intent — substantially more vulnerable; revise before introduction) Track B amendment savings clause as currently drafted (may self-defeat regulatory grant) Presidential blind-trust mandate (novel Article II questions) |

## GROUP G — BYRD RULE / RECONCILIATION ARCHITECTURE

*COLT (Bill 1) · IIC (Bill 2) · FSW (Bill 4) · Phase I*

|                              |                                                                                                                                                                                |
|------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Bills</b>                 | COLT Act (Bill 1) · IIC Act (Bill 2) · FSW Act (Bill 4) · Phase I Track A Reconciliation                                                                                       |
| <b>Governing Law</b>         | 2 U.S.C. §644 (Byrd Rule); Congressional Budget Act §313; Senate Parliamentary precedents                                                                                      |
| <b>Controlling Precedent</b> | One Big Beautiful Bill Act (OBBBA), Pub. L. 119-21 (July 4, 2025) [Source 271]                                                                                                 |
| <b>New Sources</b>           | Source 271 (OBBBA 2025); IRA experience (Pub. L. 117-169, 2022)                                                                                                                |
| <b>Note</b>                  | Byrd Rule is quasi-legislative procedure, not judicial doctrine. All provisions must be pre-cleared with bills committee staff and Senate Parliamentarian before introduction. |

### The Six Byrd Rule Categories — What Gets Struck

2 U.S.C. §644 defines six categories of "extraneous matter" that face a point of order requiring 60 votes to waive. The most frequently invoked: (4) budgetary change "merely incidental" to non-budgetary components — the provision's policy impact substantially outweighs its budgetary impact. The "merely incidental" standard is defined by Senate Parliamentary precedent, not statute. Dollar magnitude alone is not dispositive: in 2021, the Parliamentarian struck immigration provisions with \$140B CBO scores because "these are substantial policy changes with lasting effects... [that] outweigh the budgetary impact."

### OBBBA 2025 — The Controlling Byrd Bath Precedent

The One Big Beautiful Bill Act (Pub. L. 119-21, July 4, 2025) [Source 271] is the most current and directly applicable precedent. Key strikes: Workforce Pell to unaccredited providers (struck — most directly analogous to FSW workforce training risk); CFPB budget cuts to reserve funding (struck); mandatory state SNAP cost-share (struck, ~\$250B offset eliminated); Medicaid provider-tax cap from 6% to 3% (struck, ~\$250B); REINS Act, EPA passenger vehicle emissions repeal, NEPA fee-for-bypass, USPS EV divestiture (all struck as policy not budget). What survived: all IRA-model tax credits (EV credits, domestic-content bonus credits, manufacturing credits); IRS enforcement appropriation; direct Medicare/Medicaid spending adjustments.

### COLT Act — Childcare and Direct File

The 7% income cap on childcare costs has three structural options with declining Byrd risk: (1) Refundable tax credit (highest survival probability) — convert to a refundable IRC §21 expansion paying a credit equal to qualifying childcare costs exceeding 7% of AGI; direct revenue effect; clearest Byrd-compliant pathway. (2) CCDBG sliding-scale appropriation (medium risk) — appropriate funds tied to a federal share ensuring copayments do not exceed 7%; frames the cap as a term or condition of outlay rather than a free-standing mandate. (3) Mandate on providers or states (highest risk) — most analogous to ARPA \$15 minimum wage (struck) and BBBA childcare wage-parity provisions (flagged high-risk in advisory rulings).

IRS Direct File (pre-filled returns): The IRA precedent is directly on point. IRA §10301(1)(B) Direct File feasibility-study funding survived the Byrd bath; the Strategic Operating Plan mandate was struck and re-imposed administratively by Yellen letter. For COLT: appropriate funds for IRS Direct File operations (low risk); do not include free-standing statutory mandates dictating program design (higher risk). Allow Treasury to operate under existing statutory authority with reporting/study language tied to the appropriation.

### FSW Act — Workforce Training Is Highest Byrd Risk

The direct-appropriation-vs.-mandate distinction is critical because regulatory mandates can be characterized as policy whose budget impact is "merely incidental." WIOA reauthorization has always passed under regular order — implicit congressional acknowledgment that programmatic workforce restructuring cannot survive Byrd. The OBBBA Workforce



Pell unaccredited-provider strike [Source 271] is the controlling 2025 precedent: even a Pell expansion with substantial dollar impact was struck because the eligibility architecture (unaccredited providers) represented policy that outweighed the budget effect.

**FSW Title II Workforce Training — Recommended Structure**

(1) Supplement existing accounts: WIOA Title I, Perkins V, Registered Apprenticeship, Job Corps — direct supplements have the cleanest Byrd profile. (2) Avoid creating new regulatory programs from scratch — new definitions, eligibility, performance measurement, and governance embedded in statute is the highest-risk vector. (3) Frame conditions as "terms and conditions" of outlay (CRS RL30862 recognizes this category). (4) Use refundable tax credits where possible — Work Opportunity Tax Credit extensions, §41-style training credits. (5) Avoid wage-parity, prevailing-wage, or labor-standards language tied to grant eligibility — most analogous to ARPA \$15 minimum wage. (6) Cabin to existing budget window.

**IIC Act — Domestic Content**

IRA §§48/48E/45/45Y domestic-content bonus credits [Source 208] all survived the IRA Byrd bath because they are tax credits with direct revenue effects — meeting or failing the threshold changes tax liability. IIC Act domestic content requirements framed as tax-credit bonuses (IRA model) are Byrd-safe. Domestic content mandates on grid operators generally — imposing requirements that operate independently of federal financial flows — would almost certainly be struck. The Build America Buy America Act (IIJA) was placed in non-reconciliation infrastructure legislation by deliberate bipartisan choice, acknowledging that broad infrastructure mandates cannot survive Byrd.

IIC inspector workforce expansion should be drafted as a direct mandatory appropriation to DOE/FERC for staffing under existing OPM hiring authorities, not as a new inspectorate architecture. The OBBBA's Medicaid provider-tax cap strike (~\$250B) illustrates the Parliamentarian's willingness to strike large-dollar items that represent regulatory policy rather than direct budget adjustments.

| LOW RISK                                                                                                                                                                                                                                                                                                                                         | MODERATE RISK                                                                                                                                                                                                      | HIGH RISK                                                                                                                                                                                                                                                                                                                                                                               |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| COLT Act: Refundable childcare tax credit (IRC §21 expansion model)<br>COLT Act: IRS Direct File appropriation (fund operations, not mandate)<br>IIC Act: Domestic-content bonus credits (IRA §§48/48E/45Y model)<br>IIC Act: Grid-modernization direct appropriation<br>FSW Act: Supplements to existing WIOA/Perkins V/Apprenticeship accounts | COLT Act: CCDBG sliding-scale copay cap (framed as terms/conditions of outlay)<br>IIC Act: Inspector workforce expansion (as DOE/FERC direct appropriation)<br>FSW Act: Short-term refundable training tax credits | COLT Act: Free-standing childcare cost mandate on providers/states<br>IIC Act: Domestic content mandates on grid operators operating independently of federal funding<br>FSW Act: New programmatic workforce architecture with eligibility, definitions, performance standards<br>FSW Act: Wage-parity or prevailing-wage conditions on training grants (ARPA \$15 minimum wage analog) |

# CROSS-CUTTING CONCLUSIONS

## Three Doctrinal Convergence Points and Drafting Principles

### Three Convergent Drafting Principles

The seven research groups produce three principles that apply across all twelve bills:

1. Avoid content- and speaker-based discrimination. This is the common thread connecting Sorrell (DRDO Title II data restrictions), the Maryland Digital Advertising Tax pass-through ban (BWDS Title II digital services levy), and Brewster's actus reus framework (ACFM Title I stock trading). Any provision that treats identical conduct differently based on the identity or viewpoint of the actor creates First Amendment exposure that is difficult to cure.
2. Anchor each bill in a long-standing federal regulatory tradition with surviving precedent. §1291/§453A/§877A for BWDS; professional-fiduciary regulation for DRDO; EIGA/§207 for ACFM; Footnote 9/MSI v. Moore for NFSA; §371 senior-status tradition for DIR. Provisions that create entirely new constitutional frameworks without historical anchors face heavier burden of justification at every step of constitutional review.
3. Build legislative records that satisfy the demanding causation standards now required. Brown v. EMA (2011) [Source 236] requires causation (not correlation) of harm for minor-protective restrictions. Moore (2024) [Source 203] requires the income characterization to hold across all income-tax doctrine. DeCoster (2016) [Source 248] requires that the RCO penalty not exceed what due process supports given the state of the law. The quality of the legislative record built before challenge matters as much as the statutory text.

### The Three Doctrinal Corrections — Restated

These corrections should be applied to all existing and future counsel notes before introduction of any affected bill:

| Prior Framing (Incorrect)                                                     | Correct Framing                                                                                                                                                                                                                                                                       |
|-------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| UCT: ERISA §514 preemption is central concern for federal legislation         | ERISA §514 preempts STATE laws only. Federal legislation is not preempted. UCT concern is §502 exclusive-remedy coordination for migrated coverage — not §514.                                                                                                                        |
| POHE: Auto-trigger implicates major questions doctrine (West Virginia v. EPA) | MQD applies to AGENCY action only. Auto-trigger is a self-executing statutory formula — Congress is legislating, not an agency claiming authority. Correct doctrine is nondelegation (intelligible principle test, reaffirmed FCC v. Consumers' Research 2025). The trigger is safe.  |
| DIR: Track A statutory campaign finance is a viable near-term path            | Track A is conditioned on Citizens United being "narrowed." Current Court composition makes this unrealistic absent the Maine First Circuit vehicle producing unexpected results. Track B (constitutional amendment) is the operative legislative path. Invest in Article V strategy. |

### Highest-Priority External Decisions to Monitor

The following pending decisions will materially affect specific bills. Each should trigger a counsel-note revision in the affected bill when decided:

| Case / Decision                                      | Bill Affected | What to Watch                                                                                                                |
|------------------------------------------------------|---------------|------------------------------------------------------------------------------------------------------------------------------|
| ANJRPC v. AG New Jersey (3d Cir. en banc, pending)   | NFSA Bill 12  | If 3d Cir. strikes NJ assault weapons ban, first circuit split created — revise NFSA assault-category definition immediately |
| Snope/Viramontes/Duncan cert grants (SCOTUS OT 2026) | NFSA Bill 12  | Kavanaugh statement signals cert grant "in next Term or two" — monitor for AR-15 case grant; brief NFSA counsel              |
| Maine super-PAC litigation (1st Cir. No. 25-xxxx)    | DIR Bill 11   | Only viable Citizens United narrowing vehicle; if 1st Cir. upholds Maine cap, potential SCOTUS vehicle for OT 2027           |
| Koons/Siegel v. Platkin (3d Cir. en banc, pending)   | NFSA Bill 12  | Surety-doctrine treatment directly relevant to FCOC Track B historical-analog argument                                       |

|                                                                   |             |                                                                                                                    |
|-------------------------------------------------------------------|-------------|--------------------------------------------------------------------------------------------------------------------|
| <b>Louisiana v. Callais fallout in lower courts (April 2026+)</b> | DIR Bill 11 | VRA §2 now requires intent proof — revise DIR state-legislative redistricting before introduction                  |
| <b>FinCEN IFR finalization / CTA litigation (5th Cir.)</b>        | HCI Bill 8  | If 5th Cir. strikes CTA, HCI registry design may need adjustment; if CTA survives, HCI registry is more defensible |

## SOURCE REFERENCE INDEX

*Constitutional Law Sources 200–271 (Source Reference Guide v6)*

The following sources from this research are catalogued in REF\_RDNC\_SourceReferenceGuide\_2026\_6. Source numbers are stable reference identifiers for use in bill counsel notes and all downstream RDNC documents.

| #   | Source                                         | Group               | Bill(s)         |
|-----|------------------------------------------------|---------------------|-----------------|
| 200 | Bruen (2022)                                   | A — 2d Amend.       | NFSA 12         |
| 201 | MSI v. Moore, 4th Cir. en banc (2024)          | A — 2d Amend.       | NFSA 12         |
| 202 | Rahimi (2024)                                  | A — 2d Amend.       | NFSA 12         |
| 203 | Moore v. United States (2024)                  | B — 16th Amend.     | BWDS 5          |
| 204 | South Dakota v. Dole (1987)                    | D — Spending        | HCI 8           |
| 205 | Sorrell v. IMS Health (2011)                   | C — 1st Amend.      | DRDO 7          |
| 206 | Ruckelshaus v. Monsanto (1984)                 | C — 1st Amend.      | DRDO 7          |
| 207 | Speech or Debate Clause, Art. I §6             | F — S/D Clause      | ACFM 3          |
| 208 | IRC §§475/1256/1296                            | B — 16th Amend.     | BWDS 5          |
| 209 | Heller (2008)                                  | A — 2d Amend.       | NFSA 12         |
| 210 | McDonald (2010)                                | A — 2d Amend.       | NFSA 12         |
| 214 | Antonyuk v. James (2d Cir. 2024)               | A — 2d Amend.       | NFSA 12         |
| 215 | McRorey v. Garland (5th Cir. 2024)             | A — 2d Amend.       | NFSA 12         |
| 216 | Bianchi v. Brown (4th Cir. 2024)               | A — 2d Amend.       | NFSA 12         |
| 217 | NAGR v. Lamont (2d Cir. 2025)                  | A — 2d Amend.       | NFSA 12         |
| 218 | U.S. v. Morgan (10th Cir. 2025)                | A — 2d Amend.       | NFSA 12         |
| 219 | Snope v. Brown / Kavanaugh Statement (2025)    | A — 2d Amend.       | NFSA 12         |
| 220 | ANJRPC v. AG NJ (3d Cir. en banc, pending)     | A — 2d Amend.       | NFSA 12         |
| 221 | U.S. v. Peterson (5th Cir. 2025)               | A — 2d Amend.       | NFSA 12         |
| 222 | Gonzales v. Raich (2005)                       | A — 2d Amend.       | NFSA 12         |
| 223 | Koons/Siegel v. Platin (3d Cir. pending)       | A — 2d Amend.       | NFSA 12         |
| 224 | Eisner v. Macomber (1920)                      | B — 16th Amend.     | BWDS 5          |
| 225 | Helvering v. Bruun (1940)                      | B — 16th Amend.     | BWDS 5          |
| 226 | Cottage Savings (1991)                         | B — 16th Amend.     | BWDS 5          |
| 227 | Flint v. Stone Tracy (1911)                    | B — 16th Amend.     | BWDS 5          |
| 228 | Chamber of Commerce v. Lierman (4th Cir. 2025) | B — 16th Amend.     | BWDS 5          |
| 229 | Sonzinsky (1937)                               | B — 16th Amend. / A | BWDS 5; NFSA 12 |
| 230 | IRC §877A Exit Tax (2008)                      | B — 16th Amend.     | BWDS 5          |
| 231 | Moody v. NetChoice (2024)                      | C — 1st Amend.      | DRDO 7          |
| 232 | Free Speech Coalition v. Paxton (2025)         | C — 1st Amend.      | DRDO 7          |
| 233 | NetChoice v. Bonta CAADCA (2024-2026)          | C — 1st Amend.      | DRDO 7          |
| 234 | Zauderer (1985)                                | C — 1st Amend.      | DRDO 7          |
| 235 | NIFLA v. Becerra (2018)                        | C — 1st Amend.      | DRDO 7          |
| 236 | Brown v. EMA (2011)                            | C — 1st Amend.      | DRDO 7          |
| 237 | Reno v. ACLU (1997)                            | C — 1st Amend.      | DRDO 7          |
| 238 | Cedar Point Nursery (2021)                     | C — 1st Amend.      | DRDO 7          |
| 239 | Balkin, Information Fiduciaries (2016)         | C — 1st Amend.      | DRDO 7          |
| 240 | 303 Creative (2023)                            | C — 1st Amend.      | DRDO 7          |
| 241 | Brewster (1972)                                | F — S/D Clause      | ACFM 3          |
| 242 | Gravel (1972)                                  | F — S/D Clause      | ACFM 3          |
| 243 | Helstoski (1979)                               | F — S/D Clause      | ACFM 3          |
| 244 | Johnson (1966)                                 | F — S/D Clause      | ACFM 3          |
| 245 | U.S. v. Park — RCO (1975)                      | F — S/D Clause      | ACFM 3          |

|     |                                                      |                   |                      |
|-----|------------------------------------------------------|-------------------|----------------------|
| 246 | Rayburn House (D.C. Cir. 2007)                       | F — S/D Clause    | ACFM 3               |
| 247 | Renzi (9th Cir. 2011)                                | F — S/D Clause    | ACFM 3               |
| 248 | DeCoster (8th Cir. 2016)                             | F — S/D Clause    | ACFM 3               |
| 249 | Duplantier (5th Cir. 1979)                           | F — S/D Clause    | ACFM 3               |
| 250 | Eastland (1975)                                      | F — S/D Clause    | ACFM 3               |
| 251 | NFIB v. Sebelius (2012)                              | D — Spending      | HCI 8; POHE 6; UCT 9 |
| 252 | Mayhew v. Burwell (1st Cir. 2014)                    | D — Spending      | HCI 8                |
| 253 | NSBU v. Treasury (11th Cir. 2025)                    | D — Spending      | HCI 8                |
| 254 | McHenry v. Texas Top Cop Shop (2025)                 | D — Spending      | HCI 8                |
| 255 | Rutledge v. PCMA (2020)                              | D — Spending      | POHE 6; UCT 9        |
| 256 | Gobeille v. Liberty Mutual (2016)                    | D — Spending      | UCT 9                |
| 257 | West Virginia v. EPA (2022)                          | D — Spending      | POHE 6; UCT 9        |
| 258 | Biden v. Nebraska (2023)                             | D — Spending      | POHE 6               |
| 259 | FCC v. Consumers' Research (2025)                    | D — Spending      | POHE 6; UCT 9        |
| 260 | Loper Bright (2024)                                  | D — Cross-cutting | All bills            |
| 261 | U.S. Term Limits v. Thornton (1995)                  | E — Art. III      | DIR 11               |
| 262 | Citizens United (2010)                               | E — Art. III      | DIR 11               |
| 263 | McCutcheon (2014)                                    | E — Art. III      | DIR 11               |
| 264 | AIRC (2015)                                          | E — Art. III      | DIR 11               |
| 265 | Moore v. Harper (2023)                               | E — Art. III      | DIR 11               |
| 266 | Louisiana v. Callais (April 29, 2026) ★ JUST DECIDED | E — Art. III      | DIR 11               |
| 267 | Brnovich v. DNC (2021)                               | E — Art. III      | DIR 11               |
| 268 | AFPF v. Bonta (2021)                                 | E — Art. III / F  | DIR 11; ACFM 3       |
| 269 | Bluman v. FEC (2012)                                 | E — Art. III      | DIR 11               |
| 270 | Dillon v. Gloss (1921)                               | E — Art. III      | DIR 11               |
| 271 | OBBBA Pub. L. 119-21 (July 4, 2025)                  | G — Byrd Rule     | COLT 1; IIC 2; FSW 4 |